

HOUSE No. 422

The Commonwealth of Massachusetts

PRESENTED BY:

David Henry Argosky LeBoeuf

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to creating a voluntary licensure pathway for traditional Asian bodywork therapy practices.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>1/16/2025</i>

HOUSE No. 422

By Representative LeBoeuf of Worcester, a petition (accompanied by bill, House, No. 422) of David Henry Argosky LeBoeuf for legislation to establish a board of registration of Asian bodywork therapy. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to creating a voluntary licensure pathway for traditional Asian bodywork therapy practices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. MGL Chapter 13 is hereby amended to include after Section 98 the
2 following subsection:-

3 (a) There shall be within the division of occupational licensure a board of registration of
4 Asian Bodywork Therapy. The board shall consist of 5 members who shall be appointed by the
5 governor for terms of 3 years chosen from a list of recommended individuals submitted by the
6 American Organization for Bodywork Therapies of Asia (AOBTA®) Massachusetts Chapter or
7 COSP approved school, the National Certification Commission for Acupuncture and Oriental
8 Medicine (NCCAOM)®, Accreditation Commission for Acupuncture and Herbal Medicine
9 (ACAHM), or any other board- approved professional traditional Asian therapy organization or
10 institution engaged in teaching traditional Asian healing therapies, 3 of whom shall be certified
11 Asian Bodywork Therapists who have been actively engaged in the practice of Asian Bodywork
12 Therapy in the commonwealth for not less than 3 years immediately before their appointments, 1

of whom shall be an individual who is or has been actively engaged in the operation of a licensed Asian Bodywork Therapy school; and 1 of whom shall be a consumer who is familiar with the Asian Bodywork Therapists or comparable Traditional Asian Healing Therapy fields.

(b) of the initial members appointed to the board, 2 shall serve for terms of 3 years, 2 shall serve for terms of 2 years and 1 shall serve for terms of 1 year. Each member of the board shall hold office until his successor has been appointed. A vacancy in the membership of the board shall be filled for the unexpired term in the manner provided for the original appointment. A member may be removed by the governor for cause.

(c) The board shall at its first meeting and, annually thereafter, elect from among its members, by majority vote, a chairman, vice-chairman and secretary. The board shall meet at least once every 3 months and may hold additional meetings as necessary to discharge its duties. Members shall receive no compensation but shall be entitled to reasonable travel expenses.

SECTION 2. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-

(a) The board shall: (i) administer and enforce sections outlined in this bill; (ii) adopt rules and regulations governing the licensure of Asian Bodywork Therapists, the practice of Asian Bodywork Therapy and the operation of Asian Bodywork Therapy schools and programs to promote public health, welfare and safety; (iii) establish standards of professional and ethical conduct (iv) establish standards for continuing education; and (v) investigate complaints, conduct inspections, review billing and treatment records and set and administer penalties for fraudulent, deceptive or professionally incompetent and unsafe practices and for violations of rules and regulations promulgated by the board.

(b) The board shall make available to the public a list of licensed Asian Bodywork Therapists as well

as a list of each licensed and board-approved facility under its jurisdiction. The board shall establish

by regulation a code of ethics.

(c) The board shall adopt rules and regulations to differentiate among varying scopes of practice within Asian Bodywork Therapy, to ensure that an Asian Bodywork Therapist operates within the authorized scope of practice for which the Asian Bodywork Therapist has demonstrated satisfactory competency to the board; provided that the board shall require no more than one application for any applicant seeking to practice multiple disciplines under its jurisdiction. The board shall host at least 1 public session to solicit information from qualifying Asian Bodywork Therapists to inform the rules and regulations.

(d) The board shall adopt policies and procedures to evaluate and approve out of state schools and programs for licensure, continuing education and grandfathering.

SECTION 3. As used in this section and sections [1-14], inclusive, the following words shall, unless the context requires otherwise, have the following meanings:-

"Board", the board of registration of Asian Bodywork Therapy.

"Asian Bodywork Therapist" or "Asian Bodywork practitioner", a person licensed by the board who instructs or administers Asian Bodywork or Asian Bodywork Therapy for compensation.

“Asian Bodywork Therapy”, the practice of Chinese bodywork lineages (Forms), such as Acupressure, Shiatsu, or Tuina. Asian Bodywork Therapy is one of the professional branches of Chinese Medicine nationally recognized by the National Certification Commission for Acupuncture and Oriental Medicine (NCCAOM). ABT assessment and treatment may include, but is not limited to: touching, stretching,

pressing or holding meridians and/or acu-points, primarily with the hands. Appropriately trained

practitioners may also use external application of medicinal plants, heat or cold; meditation, dietary,

lifestyle and exercise suggestions/recommendations; cupping; gua sha; moxibustion and other

adjunct therapies, techniques or practices.

“Asian Bodywork Therapy (ABT) shall not include diagnoses, the prescribing of drugs or medicines,

any services or procedures outside of the scope of traditional Asian healing therapy and/or for which

a license to practice medicine, or podiatry is required by law.

“Asian Bodywork Therapy intern”, an Asian Bodywork Therapy student engaged in practical training

of Asian Bodywork Therapy on human subjects in an Asian Bodywork Therapy
internship program

approved by the board of Asian Bodywork Therapy.

“Licensed or Board-Approved School or Program”, a school or program of instruction in
Asian

Bodywork Therapy that meets or exceeds the national education standards set by the
American

Organization for Bodywork Therapies of Asia (AOBTA®), their successor organizations
and/or

board approved organizations, other state or federal agency or department and/or after
meeting

minimum standards as determined by using the CIP Code 51.3502 Title: Asian
Bodywork Therapy.

Board-Approved Schools and Programs include, but are not limited to members of the
AOBTA®

Council of Schools and Programs (AOBTA®-COSP).

"Licensed or Board-Approved Asian Bodywork Therapy establishment", a place, office,
clinic, or facility licensed by the board to offer Asian Bodywork Therapy services.

SECTION 4. MGL Chapter 147 is hereby amended to include after Section 62 the
following subsection:-

(a) No person shall hold themselves out to others as an Asian Bodywork Therapist or Practitioner,

practice Asian Bodywork Therapy, unless the person holds a valid license issued in accordance with this chapter. A person licensed to practice Asian Bodywork Therapy shall not perform: (i) diagnosis of illness or disease; (ii) application of ultrasound; (iii) prescription of medicines.

(b) The following practitioners shall be exempt from the licensure requirements of this section:

(i) a person who: (A) is otherwise licensed, certified or registered under the General Laws; (B) is performing services within the person's authorized scope of practice; and (C) does not hold the person's self out to be an Asian Bodywork Therapist. (ii) a person who is duly licensed, registered, certified or operating legally in another state, territory, the District of Columbia or a foreign country when temporarily called into the commonwealth to teach a course related to Asian Bodywork Therapy or to consult with a person licensed as an Asian Bodywork Therapist under this chapter; (iii) a student of Asian Bodywork Therapy who is enrolled in a licensed or board-approved school or program for Asian Bodywork Therapy and is performing work as a required component of the student's course of study at such school, including supervised internships; provided, however, that the student shall not hold the student's self out as a licensed Asian Bodywork Therapist under this chapter and shall not receive compensation for the work; (iv) a person giving Asian Bodywork Therapy to a member of that person's immediate family for which the person received no compensation; (v) a person, duly licensed, registered or certified in another state, territory, the District of Columbia or a foreign country who is

116 incidentally in the commonwealth to provide service as part of an emergency response team
117 working in conjunction with disaster relief officials; and (vi) a person giving Asian Bodywork
118 Therapy in a sporting, health or other event, whether on a single day or on consecutive days, that
119 is non-compensatory and under the supervision of a licensed Asian Bodywork Therapist.

120 (c)"Nothing in this act shall restrict or prohibit individuals from engaging in personal or
121 professional practices associated with Chinese medicine. These disciplines include, but are not
122 limited to, Energy Medicine (such as Clinical, Medical or Health Qigong), Spatial Harmony
123 (such as Feng Shui), Spiritual Practices, Mindfulness and Meditation (including the instruction,
124 personal and professional practice of disciplines such as Reiki, Buddhism, Confucianism,
125 Daoism, and Shinto), Exercise (such as the personal, professional practice, and instruction of
126 Martial Arts, Tai Chi and Movement Qigong), and other similar East Asian practices that may
127 operate within the scope of Chinese medical theory. The intention of this exemption language is
128 to ensure that all interpretations of this bill respect the diverse aspects of Chinese medicine and
129 prevent any unwarranted board overreach."

130 (d) Nothing in this Act prohibits a person from engaging in the practice, instruction, or
131 clinical application of Qigong.

132 (e) Nothing in this Act prohibits a person from engaging in the practice, instruction, or
133 clinical application of Tai Chi.

134 (f) Nothing in this Act prohibits a person from engaging in the practice, instruction, or
135 clinical application of Reiki.

136 (g) Nothing in this Act prohibits a person from engaging in a profession, or professional
137 branch of Chinese Medicine, not specifically named or defined within this Act.

SECTION 5. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-(a) A person who desires to engage in the practice of Asian Bodywork Therapy shall apply on a form furnished by the board that shall be signed and sworn to by the applicant. Each application shall be accompanied by payment of the fee prescribed by the executive office for administration and finance pursuant to this Act. Upon submission of a completed application to the board and the payment of the required fee, the board may issue a license to practice as an Asian Bodywork Therapist to an applicant who: (i) has obtained a high school diploma or its equivalent; (ii) is 18 years of age or older; (iii) has submitted 2 professional letters of reference, with at least 1 being from an employer or professional in the Asian Bodywork Therapy or holistic healthcare or medical field; (iv) is of good moral character, as determined by the discretion of the board; (v) (1) has successfully completed a course of study or supervised instruction at a licensed or board-approved Asian Bodywork Therapy school or program that has been determined appropriate by the board; or (2) has had a legal, professional Asian Bodywork Therapy practice in another jurisdiction for no less than 10 years prior to the passage date of this Act and has maintained professional liability insurance without incident; and, either has maintained a relationship as a professional ABT practitioner through the American Organization for Bodywork Therapies of Asia®, the National Certification Commission for Acupuncture and Oriental Medicine, or comparable organization approved by the Board; or, can prove completion of apprenticeship training or provide a certificate of completion of training, or demonstrate competency to the satisfaction of the board; and (vi) provides proof of professional liability coverage; and (vii) demonstrates the professional competence that may be required by the board's regulations. The board shall require no more than one application for any

161 applicant seeking to practice multiple disciplines under its jurisdiction; provided, that said
162 applicant can demonstrate competency in each discipline as determined by the board; provided
163 further, that the board shall collect one fee per application.

164 (b) The commissioner of the division of professional licensure shall determine the
165 renewal cycle and

166 renewal period for Asian Bodywork Therapy licenses. Each person licensed in
167 accordance with these sections shall apply to the board for renewal of the person's license not
168 later than the expiration date, as determined by the board unless the license was revoked,
169 suspended or canceled earlier by the board as a result of a disciplinary proceeding instituted
170 pursuant to this chapter. Applications for renewal shall be made on forms approved by the board
171 and accompanied by payment of a renewal fee, as prescribed by the executive office for
172 administration and finance pursuant to previous statutes provided, however, that the fee shall not
173 be less than \$100. (c) As a condition of license renewal, a licensed Asian Bodywork Therapist
174 shall furnish the board with satisfactory proof that the licensee: (i) has professional liability
175 coverage; and (ii) Upon satisfactory compliance with the licensing requirements for Asian
176 Bodywork Therapists the board shall issue a renewal license showing that the holder is entitled
177 to be licensed for the renewal period. The board may provide for the late renewal of a license
178 that has lapsed and may require payment of a late fee.

179 SECTION 6. MGL Chapter 147 is hereby amended to include after Section 62 the
180 following subsection:-

181 The board may provide reciprocal licenses for registered, certified or licensed Asian
182 Bodywork Therapists from other jurisdictions if the standards of registration, certification or

183 licensure in their jurisdictions are reasonably equivalent to those set forth in previous sections.
184 The board shall adopt rules and regulations for the implementation of this section. The fee for a
185 reciprocal license shall be prescribed by the executive office of administration and finance
186 pursuant to previous statutes and shall not be less than \$100. An applicant shall not be granted
187 reciprocity if his license to practice is revoked or suspended by any other jurisdiction. The board,
188 subject to a vote of the majority of its members, may revoke a license if the license, certificate,
189 registration or authority issued by another state or territory of the United States, the District of
190 Columbia, or a foreign state or nation is revoked, canceled, suspended, or otherwise acted
191 against, or if the holder has been disciplined in that jurisdiction, if the basis for the action would
192 constitute a basis for disciplinary action in the commonwealth.

193 SECTION 7. MGL Chapter 147 is hereby amended to include after Section 62 the
194 following subsection:-

195 The board may grant a license to an applicant for an Asian Bodywork Therapist license
196 who: (i) (A) provides documentation, acceptable to the board, that demonstrates that the
197 applicant has met the requirements sets forth in previous statutes, provided an appropriate
198 number of hours of bodyworks therapy, as determined by the board, to members of the public for
199 compensation; (B) has been authorized to practice Asian Bodywork Therapy by the municipal
200 board of health within the commonwealth; provided, however, that the authorization shall be
201 valid not more than 2 years after the date of issuance; (C) provides proof of the successful
202 passage of a board approved examination or certification administered by a national organization
203 listed in statute, or board accredited by the National Commission for Certifying Agencies; or (D)
204 (1) within a period of two years after the effective date of the rules promulgated under this Act,
205 produces proof that he or she has met at least one of the following requirements by the time of

application: (2) is a member of the American Organization for Bodywork Therapies of Asia® (AOBTA®) at a level of membership requiring national competency standards of training, including Certified Practitioner, Registered Instructor or Certified Instructor; or another board approved ABT professional organization, based on a verified minimum level of training, demonstration of competency, and adherence to ethical standards set by their governing body approved by the Board; or (3) has practiced any of the Asian Bodywork Therapy as listed Section 11 for at least 10 years prior to the passage date of this Act; and at least one of the following; has maintained professional liability insurance without incident, or can provide a certificate of completion of training, or prove completion of apprenticeship training, or demonstrate competency to the satisfaction of the board; or (4) is currently certified by the National Certification Commission for Acupuncture and Oriental Medicine® as a Diplomat in Asian Bodywork Therapy [Dipl. ABT (NCCAOM)®]; or (2) An individual who has practiced Asian Bodywork Therapy for a minimum of one year prior to the passage date of this Act, but has not less than 200 hours of formal Traditional Asian Healing Therapies training, may be issued a provisional license under this Section, but with additional training must meet the national recognized competency standards, or become professionally certified with a board-approved ABT organization within 5 years of the approved application; and (ii) submits a completed application and pays the necessary fee prescribed by the executive office for administration and finance (iii) is of good moral character, as determined by the discretion of the board; and (iv) provides proof of professional liability coverage.

SECTION 8. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-

(a) The board shall conduct inspections and investigate all complaints filed that relate to the proper practice of Asian Bodywork Therapy, the operation of an Asian Bodywork Therapy facility and any violation of sections of this statute inclusive, or a rule or regulation of the board. Such a complaint may be brought by any person or the board may, on its own, initiate a complaint.

(b) The board shall be under the supervision of the division of professional licensure and shall have all the authority conferred in Mass General Law inclusive. For the purposes of this section and additional sections, conduct that places into question the holder's competence to practice Asian Bodywork Therapy or operate an Asian Bodywork Therapy facility shall include, but not be limited to: (i) committing fraud or misrepresentation in obtaining a license; (ii) criminal conduct that the board determines to be of such a nature as to render the person unfit to practice as a licensed Asian Bodywork Therapist to operate a licensed Asian Bodywork Therapy facility, as evidenced by criminal proceedings that resulted in a conviction, guilty plea or plea of nolo contendere or an admission of sufficient facts; (iii) violating any rule or regulation of the board; (iv) failing to cooperate with the board or its agents in the conduct of an inspection or investigation; (v) failing to fulfill any continuing education requirements set out by the board; (vi) violating an ethical standard that the board determines to be of such a nature as to render the

person unfit to practice as an Asian Bodywork Therapist or to operate a licensed Asian Bodywork Therapy facility, including, but not limited to: (A) inappropriate conduct or touching in the practice of Asian Bodywork Therapy; (B) offering medical diagnosis; or (C) negligence in the course of professional practice.

249 The board may issue an order to a licensee directing the licensee to cease and desist from
250 unethical or unprofessional conduct if the board finds, after the opportunity for a hearing, that the
251 licensee has engaged in such conduct.

252 (c) An Asian Bodywork Therapist whose license to practice is suspended for more than 1
253 year for professional misconduct with regard to insurance claims shall not own, operate, practice
254 in or be employed by another healthcare practice or practitioner, in any capacity, until the license
255 is reinstated by the board. An Asian Bodywork Therapist whose license is suspended for a 12 of
256 15 second offense with regard to insurance claims shall have the license permanently revoked
257 and may not own, operate, practice in or be employed by a business that provides healthcare.

258 (d) Nothing in this section shall limit the board's authority to impose sanctions by consent
259 agreements that are considered reasonable and appropriate by the board. A person aggrieved by a
260 disciplinary action taken by the board pursuant to this section or this Act, may file a petition for
261 judicial review.

262 SECTION 9. MGL Chapter 147 is hereby amended to include after Section 62 the
263 following subsection:-

264 The board shall establish standards to be met by the Asian Bodywork Therapist schools
265 and programs. The board shall approve the Asian Bodywork Therapy school and program
266 curricula, training, facilities and instructors based upon nationally recognized standards of each
267 discipline. A school or program shall not teach Asian Bodywork Therapy without prior approval
268 by the board unless licensed by the division of professional licensure or other state or federal
269 agency or department.

SECTION 10. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-

The board shall adopt regulations necessary to ensure the safe and lawful practice of Asian Bodywork Therapy. Every person receiving a license from the board shall conspicuously display the license in his place of business.

SECTION 11. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-

(a) Only a person duly licensed under this chapter shall be designated as an Asian Bodywork Therapist (ABT) and entitled to use the terms “Asian Bodywork Therapist”, “Asian Bodywork Practitioner” and their abbreviations or derivations, or any specific titles, abbreviations or derivations of Asian Bodywork Therapy forms when advertising or printing promotional material.

A person who uses such a term in the person’s professional title without being authorized to do so shall be subject to discipline by the board. A person who: (i) knowingly aids and abets another to or (ii) knowingly employs a person not authorized to use such a term in the course of the employment, shall be subject to a disciplinary proceeding before the board.

Nothing in this section shall prohibit a licensed Asian Bodywork Therapist from using terms reflecting a specific discipline for which they are authorized by the board to practice when advertising or printing promotional material.

It shall be a violation of this chapter for a person to advertise: (i) as an Asian Bodywork Therapist or Asian Bodywork Therapy facility unless the person has an employee who holds a

valid license under this chapter; (ii) by combining advertising for a licensed Asian Bodywork Therapy service with escort or dating services; (iii) as performing Asian Bodywork Therapy in a form in which the person has not received training or of a type that is not licensed or otherwise recognized by law or administrative rule; or (iv) by using any term other than “Asian Bodywork Therapy,” “Asian Bodywork Therapist,” and their form-specific titles and derivations to refer to the service.

As used in this section, the term “advertise” shall include, but not be limited to: (i) the issuance of a card, sign or device to another; (ii) the causing, permitting or allowing of a sign or marking on or in a building, vehicle or structure; (iii) advertising in a newspaper or magazine, on television or through electronic means or online advertising means or forums; (iv) any listing or advertising in a directory under a classification or heading that includes the words “Asian Bodywork Therapist” “Asian Bodywork Therapy”, or any of their form-specific titles and derivations; or (v) a commercial broadcast by airwave transmission.

(b) Any persons who: (i) is otherwise licensed, certified or registered under the law; (ii) is performing services within the person’s authorized scope of practice; and (iii) does not hold the person’s self out to be an Asian Bodywork Therapist shall be exempt from this section.

SECTION 12. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-

The board of registration of Asian Bodywork Therapy shall promulgate regulations not more than 180 days after a quorum of the board is appointed.

SECTION 13. MGL Chapter 147 is hereby amended to include after Section 62 the following subsection:-

313 All orders, rules and regulations duly made and all licenses and approvals duly granted
314 that are in force immediately before the effective date of this Act shall continue in force and shall
315 thereafter be enforced until superseded, revised, rescinded or canceled in accordance with law by
316 the appropriate board.

317 SECTION 14. MGL Chapter 147 is hereby amended to include after Section 62 the
318 following subsection:-

319 The board of registration of Asian Bodywork Therapy shall receive applications for
320 licenses not later than 1 year following passage of this act.